

Approved as to
form only.

D. White

Date: March 21, 2012

PROFESSIONAL SERVICES AGREEMENT

Project Name: **Updating Turning Movement Counts (RFP - 14 - 12)**

RFP - 14 - 12

Risk Review

CONTRACT # _____

MPO CONTRACT # 187418

By: *BT*
Date: 3-21-12

PROJECT NAME - **Updating Turning Movement Counts**

PROFESSIONAL SERVICES AGREEMENT

THIS AGREEMENT made and entered into this _____ day of _____, 2012, by and between the Cheyenne Metropolitan Planning Organization, hereinafter referred to as the "MPO" whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and All Traffic Data, hereinafter referred to as "Consultant," whose address is 9660 W. 44th Ave., Wheat Ridge, CO 80033. The City of Cheyenne is acting as the agent of the MPO for the contract administration and as the MPO's Fiscal Manager in accordance with Contract #2624.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK:

The Consultant agrees to provide services as described for the above mentioned project, in accordance with the Scope of Work attached hereto as Exhibit "A", incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE:

The work included in this Scope of Work shall be completed in accordance with the project schedule Attached as "Exhibit C". Notwithstanding anything in this Agreement, Consultant, including Consultant's subconsultants, if any, shall not be responsible hereunder for any delay, default or non-performance of this Agreement, if and to the extent that such delay, default or non-performance is caused by an act of God, weather, accident, labor strike, fire, explosion, riot, war, rebellion, terrorist activity, sabotage, flood, epidemic, act of government authority in either a sovereign or contractual capacity, labor, material, equipment or supply shortage, or any cause beyond the reasonable control of such party.

3. CONSULTANT RESPONSIBILITY:

The Consultant shall be responsible for the professional quality, technical accuracy, timely completion of drawings and other services rendered by the Consultant and its sub-consultants and shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies, except to the extent that such errors,

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omissions or other deficiencies arise from digital data created by Cheyenne/Laramie County Cooperative Geographic Information System. Consultant shall perform its duties hereunder in accordance with generally accepted professional standards in existence at the time of performance of the services. If during the one year period following the completion of Consultant's services, it is shown that there is an error in the Consultant's services solely as a result of the Consultant's failure to meet these standards, Consultant shall re-perform such sub-standard services as may be necessary to remedy such error at no cost to the City of Cheyenne. Consultant makes no other warranties, express or implied, and the parties' rights, liabilities, responsibilities and remedies with respect to Consultant's services shall be exclusively those set forth herein.

4. GIS MAPS AND DIGITAL DATA.

If the consultant uses any maps, coverages, images, or other digital data created by the *Cheyenne/Laramie County Cooperative Geographic Information System (CLCCGIS)* for the project specified in Exhibit A, the consultant agrees to return or destroy that information once the project is complete. Consultant agrees not to reuse or sell the GIS maps or data, which were provided as a professional courtesy and to minimize the cost of the project.

5. GIS DATA LIMITATION AND DISCLAIMED LIABILITY.

GIS data is collected primarily for use by the City of Cheyenne and Laramie County. Any unauthorized use of the data is at the risk of the user. The CLCCGIS shall not be responsible for any unauthorized use.

6. TERM

The Term of this Agreement shall be the length of time its provisions shall bind the parties.

7. COMPLIANCE WITH LAWS:

The Parties agree that they will perform their obligations as provided in this agreement in accordance with all applicable laws and ordinances.

8. DRUG-FREE WORKPLACE:

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers and other consultants under contract with City of Cheyenne, and their employees and subcontractors, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the consultant while performing the duties and responsibilities of this

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Agreement. It is the responsibility of the consultant to familiarize himself with the requirements of this policy and to inform all employees and sub-contractors of the requirements and ensure their compliance. If the consultant, employees or sub-consultants are found in violation of this policy, this Agreement may be terminated.

9. INDEMNIFICATION / HOLD HARMLESS

In entering into this Agreement, the Consultant agrees to hold harmless and indemnify the City of Cheyenne, its officials, employees and authorized volunteers against claims and costs, including attorney's fees, to the extent arising from the Consultant's negligent or wrongful performance of this Agreement, and shall carry insurance as set forth in this Agreement. The Consultant acknowledges its understanding of this paragraph and realizes it may have a financial responsibility to the City. Neither party to this Agreement shall be liable to the other party or any third party, for any special, incidental, indirect, punitive, liquidated, delay or consequential damages of any kind including but not limited to lost profits or use of property, facilities or resources, that may result from this Agreement, or out of any goods or services furnished hereunder.

10. INSURANCE REQUIREMENTS:

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation

Workers' Compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

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The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

(1) Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and

(2) In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and

(3) Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and

(4) In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs (1), (2), or (3) of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies, with the exception of worker's compensation and professional liability insurance, and shall provide the City with a copy of the endorsements.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

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It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify the City Risk Manager, City Clerk, and the City Attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

In addition, Consultant shall provide the City with copies of insurance policies and /or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, and certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this agreement shall have a minimum A. M. Best rating of A- (excellent).

11. ADA COMPLIANCE

The Consultant shall comply fully with all requirements of the Equal Employment Opportunity Commission and the Americans with Disabilities Act. If the Consultant or its employees or subconsultants are found in violation of these requirements, this Agreement may be terminated. The Consultant shall be responsible for all such non-compliant action and shall defend, hold harmless and indemnify the City of Cheyenne. The parties further assure that they will include the language of this paragraph in all agreements associated or connected in any way with this Agreement and shall cause all existing agreements to include this clause.

12. MINORITY BUSINESS ENTERPRISES:

All parties to this agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this agreement on the grounds of age, race, color, disability, national origin or sex.

13. COMPENSATION:

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the CITY/MPO and the CITY/MPO agrees to pay Consultant according to the fee schedule provided in Exhibit "C" which is attached to this agreement, incorporated by reference and expressly made a part hereof. The amounts of all such payments shall be based upon the Consultant's progress, verified by the CITY/MPO, in completing the work as described in Exhibits "A", "B" and "C". Final

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payment shall be made following acceptance of the work by the CITY/MPO. Original quality reproductions of all designs, plans, reports, specifications, drawings and other services rendered by the Consultant shall become the sole property of the CITY/MPO and shall be delivered to the CITY/MPO along with the final invoice, immediately upon their preparation. A portion of the payment may be held until any claims are resolved.

14. CITY/MPO REPRESENTATIVE.

Prior to commencement of work, the CITY/MPO will designate in writing, a CITY/MPO Representative who shall make, within the scope of his/her authority, all necessary decisions regarding the project. All requests for contract interpretations, field orders, contract modifications, change orders, and other clarification or instruction shall be directed to the CITY/MPO Representative.

15. MONTHLY REPORT.

With every monthly billing, Consultant shall provide the CITY/MPO Representative with a written statement of the status of the work with respect to the Scope of Services, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.

16. INDEPENDENT CONTRACTOR:

The Consultant shall function as an independent contractor for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the CITY/MPO or to incur any obligation of any kind on the behalf of the CITY/MPO.

17. TAXES:

The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred in connection with its operations under this Agreement.

18. APPROVAL OF PLANS:

The CITY's/MPO's approval of drawings, designs, plans, specifications, reports, and incidental work or materials shall not in any way relieve the Consultant of responsibility for the technical accuracy of the work. The CITY's/MPO's approval or acceptance of, or payment for, any of the services shall not be construed to operate as a waiver of any of the CITY's/MPO's rights under this Agreement or any of its legal rights under statute or common law arising out of the performance of this agreement.

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19. DEFAULT:

Each and every term and condition in this agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

20. REMEDIES:

In the event a party has been declared in default, such defaulting party shall be allowed a period of thirty (30) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, damages shall not exceed the contract amount;
- b. Treat the agreement as continuing and require specific performance; or
- c. Avail itself of any other remedy at law or equity.

21. TERMINATION BY CITY/MPO:

The CITY/MPO Representative may, without cause, by written notice no less than ten (10) days to the Consultant, terminate this contract in whole or in part at any time, for the CITY's/MPO's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected, and
- b. Deliver to the CITY/MPO Representative within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.

In the event of termination for convenience, the CITY/MPO will pay consultant for accepted work done and expenses incurred prior to the date of termination. Such acceptance shall not be unreasonably withheld.

22. AMENDMENT:

This Agreement may be modified or amended if the amendment is made in writing and is signed by both parties.

23. ADDITIONAL REMEDIES.

In the event the Consultant fails to strictly perform in accordance with this Agreement,

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the CITY/MPO may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorneys' fees.

24. GOVERNING LAW, JURISDICTION and VENUE:

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

25. GOVERNMENTAL IMMUNITY.

The City of Cheyenne and the MPO do not waive governmental immunity by entering into this Agreement and specifically retain all immunities and defenses available as a Governmental Entity pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101 *et seq*, and all other applicable laws. Designation of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity.

26. ASSUMPTION OF RISK

The Consultant shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to its failure to comply with state or federal requirements. The CITY/MPO shall notify the Consultant of any state or federal determination of noncompliance.

27. ENVIRONMENTAL POLICY ACTS

The Consultant agrees all activities under this Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.

28. HUMAN TRAFFICKING

As required by 22 U.S.C. 7104(g) and 2 C.F.R. Part 175, this Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:

- a. Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
- b. Procures a commercial sex act during the period of time that the award is in effect; or

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c. Uses forced labor in the performance of the award or sub-awards under the award.

29. KICKBACKS

The Consultant certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If the Consultant breaches or violates this warranty, CITY/MPO may, at its discretion, terminate this Agreement without liability to CITY/MPO, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.

30. LIMITATIONS ON LOBBYING ACTIVITIES

By signing this Agreement, the Consultant certifies and agrees that, in accordance with Public Law 101-121, payments made from a federal grant shall not be utilized by the Consultant or its subconsultants in connection with lobbying Congress, or any other federal agency in connection with the award of a federal grant, contract, cooperative agreement, or loan.

31. MONITORING ACTIVITIES

The CITY/MPO shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its subconsultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

32. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyoming Statute § 27-9-105 et seq.), the Americans With Disabilities Act (ADA), 42 U.S.C. § 12101, et seq., and the Age Discrimination Act of 1975 and/or any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin, or disability in connection with the performance under this Agreement.

33. PUBLICITY

Any publicity given to the program or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices prepared by or for the Consultant and related to the services and work to be performed under this Agreement, shall identify CITY/MPO, the Wyoming Department of Transportation (WYDOT) and/or Federal Highway Administration as the sponsoring

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agency and shall not be released without prior written approval of Cheyenne MPO and WYDOT.

34. SUSPENSION AND DEBARMENT

By signing this Agreement, the Consultant certifies that neither it nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction nor from federal financial or non-financial assistance, nor are any of the participants involved in the execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension) and CFR 44 Part 17, or are on the debarred vendors list at www.epls.gov. Further, the Consultant agrees to notify CITY/MPO by certified mail should it or any of its agents become debarred, suspended, or voluntarily excluded during the term of this Agreement.

35. ENTIRETY OF AGREEMENT:

This agreement consisting of 11 pages, and Exhibits "A" (Scope of Work), "B" (Compensation Schedule) and "C" (Project Schedule) consisting of 4, 1 and 1 pages respectfully, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence hereof, in accordance with the applicable standard of care.

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IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

**Cheyenne Metropolitan Planning Organization
Policy Committee**

By: _____
Richard L. Kaysen, Chairman

CITY OF CHEYENNE, WYOMING

By: _____
Richard L. Kaysen, MAYOR

(SEAL)

ATTEST:

By: _____
Carol A. Intlekofer, City Clerk

Date: _____

CONSULTANT FIRM

By: _____

Title: _____

Date: _____

ADDRESS: _____

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Project Name: **Updating Turning Movement Counts Project**

EXHIBIT "A"

SCOPE OF WORK

The scope of work for the Updating Turning Movement Counts Project is to perform extensive data collection for 121 signalized intersections, including seven (7) hours of turning movement counts at each intersection in the Cheyenne, Wyoming area. The counts may be performed manually in the field by technicians or automated using Video Collection Units (VCU) such as that developed by Miovision Technologies. VCU technologies, if utilized must first be tested for accuracy.

Upon receipt of Notice to Proceed with this project, the Consultant shall proceed with the following tasks:

A.1 GENERAL CONDITIONS:

The following items are considered to be included as part of the basic compensation for this project:

- Normal business expenses - phone, postage
- Cost of insurance
- In-house computer time and service
- Word processing, accounting, and man-hour records
- Permits and license fees
- Mileage
- Travel fees, room and board, per diem
- Printing costs for all standard review, bidding, and as-constructed plans and other correspondence and contract documents
- Any changes in the Consultants or subconsultant's staff or fee structure shall be presented in writing to the City for approval prior to initiating any changes or performing any work.

A.2 Task 1 - DEVELOPMENT OF DESIGN DOCUMENTS CONSULTANT WILL:

1. Perform turning movement counts of all movements including four count classifications, passenger vehicles, heavy vehicles, pedestrians and bicyclists for the hours of 7:00 a.m. to 9:00 a.m.; 11:00 a.m. to 1:00 p.m.; and 3:00 p.m. to 6:00 p.m. (AM Peak, Noon Peak, and PM Peak) at all intersections. The turning movement data shall only be collected on Tuesdays, Wednesdays and Thursdays. The following 121 signalized intersections in Cheyenne must be counted over an 8 week span in April and May before area schools are dismissed:

<u>Signal No.</u>	<u>E-W Street</u>	<u>N-S Street</u>
103	W. 19th St.	Capitol Ave.
104	W. 20th St.	Capitol Ave.

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<u>Signal No.</u>	<u>E-W Street</u>	<u>N-S Street (contd.)</u>
105	W. 17th St.	Carey Ave.
106	W. 18th St.	Carey Ave.
107	W. 19th St.	Carey Ave.
108	W. 20th St.	Carey Ave.
109	W. 24th St.	Carey Ave.
110	W. Pershing Blvd.	Carey Ave.
111	W. 17th St.	Pioneer Ave.
112	W. 18th St.	Pioneer Ave.
113	W. 19th St.	Pioneer Ave.
114	W. 20th St.	Pioneer Ave.
115	W. 24th St.	Pioneer Ave.
118	E. 19th St.	Evans Ave.
119	E. 20th St.	Evans Ave.
120	E. 24th St.	Evans Ave.
121	E. Pershing Blvd.	Evans Ave.
122	Nationway	Ridge Rd.
123	Nationway	Windmill Rd.
124	Dell Range Blvd.	Powderhouse Rd.
125	Dell Range Blvd.	Driftwood
127	Dell Range Blvd.	Converse Ave.
128	Dell Range Blvd.	Windmill Rd.
129	Dell Range Blvd.	Ridge Rd.
130	Prairie Ave.	Powderhouse Rd.
131	W. Pershing Blvd.	Snyder Ave.
132	E. Pershing Blvd.	Morrie Ave.
133	E. Pershing Blvd.	Logan Ave.
134	E. Pershing Blvd.	Converse Ave.
135	E. Pershing Blvd.	Henderson Dr.
136	E. Pershing Blvd.	Windmill Rd.
137	E. Pershing Blvd.	Forest Dr.
139	E. Pershing Blvd.	Ridge Rd.
140	E. Pershing Blvd.	E. 19th St.
141	E. 19th St.	Morrie Ave.
142	E. 20th St.	Morrie Ave.
143	Nationway	Logan Ave.
144	E. 19th St.	Logan Ave.
145	E. 20th St.	Logan Ave.
146	E. 19th St.	Converse Ave.
147	Parsley Blvd.	Deming Dr.
148	Randall Ave.	Snyder Ave.
149	Dell Range Blvd.	Sunset Dr.
150	W. 25th St.	Carey Ave.
151	Dell Range Blvd.	Frontier Mall Dr.
152	Dell Range Blvd.	Prairie Ave.

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<u>Signal No.</u>	<u>E-W Street</u>	<u>N-S Street (contd.)</u>
153	W. 19th St.	Snyder Ave.
154	W. 20th St.	Snyder Ave.
155	Dell Range Blvd.	Yellowstone Rd.
156	Manewal Dr.	Yellowstone Rd.
157	Carlson St.	Yellowstone Rd.
158	Storey Blvd.	Yellowstone Rd.
160	Dell Range Blvd.	Wal-Mart
161	Dell Range Blvd.	Rue Terre
162	Prairie Ave.	Lowe's
163	Vandehei Ave.	Yellowstone Rd.
164	Campstool Rd.	Christensen Rd.
165	Airport Pkwy.	Converse Ave.
166	Missile Dr.	24th St. /Westland
167	Dell Range Blvd.	Stillwater Dr.
168	Storey Blvd.	Powderhouse Rd.
169	Storey Blvd.	Converse Ave.
170	E. Pershing Blvd.	Taft Ave.
171	E. 6 th St.	Logan Ave.
172	E. 5 th St.	Morrie Ave.
173	Dell Range Blvd.	Marble Ave.
174	Walterscheid Blvd.	Allison Rd.
201	W. Lincolnway	Southwest Dr.
202	W. Lincolnway	Missile Dr.
203	W. Lincolnway	Ames Ave.
204	W. Lincolnway	Snyder Ave.
205	W. Lincolnway	Pioneer Ave.
206	W. Lincolnway	Carey Ave.
207	W. Lincolnway	Capitol Ave.
208	Lincolnway	Central Ave.
209	E. Lincolnway	Warren Ave.
210	E. Lincolnway	Evans Ave.
211	E. Lincolnway	Morrie Ave.
212	E. Lincolnway	Dunn Ave.
213	E. Lincolnway	Logan Ave.
214	E. Lincolnway	Converse Ave.
215	E. Lincolnway	Hot Springs Ave.
216	U.S. Hwy 30	Ridge Rd.
217	U.S. Hwy 30	N. College Dr.
218	U.S. Hwy 30	E. Pershing Blvd.
219	College Dr.	U.S. Hwy 85
220	Fox Farm	U.S. Hwy 85
221	17th St	Central Ave
222	18th St	Central Ave
223	19th St	Central Ave

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<u>Signal No.</u>	<u>E-W Street</u>	<u>N-S Street (contd.)</u>
224	20th St	Central Ave
225	24th St	Central Ave
226	Pershing Blvd	Central Ave
227	8th Ave	Central Ave
228	Yellowstone Rd.	Central Ave
229	E. 17th St	Warren Ave
230	E. 18th St	Warren Ave
231	E. 19th St	Warren Ave
232	E. 20th St	Warren Ave
233	E. 24th St	Warren Ave
234	E. Pershing	Warren Ave
235	E. 8th Ave	Warren Ave
236	Randall Ave.	I-25 Ramp (SB)
237	Randall Ave.	I-25 Ramp (NB)
238	Allison Rd.	U.S. Hwy 85
239	Campstool Way	N. College Dr.
240	I-80 Ramp (EB)	I-180
241	I-80 Ramp (WB)	I-180
242	5th St	I-180
243	9th St	I-180
244	E. Pershing Blvd	N. College Dr.
245	Dell Range Blvd.	N. College Dr.
246	W. College Dr.	Walterscheid Blvd.
247	E. 12th St	N. College Dr
248	I-80 Ramp (EB)	N. College Dr
249	Central Ave	Walker Rd
250	25 th St.	Central Ave
251	Central Ave	I-25 Ramp (NB)
252	W. Lincolnway	Fleischli Pkwy
253	Williams Rd.	U.S. Hwy 85
254	Missile Dr.	Warren Gate No. 2

The data is to be supplied to the City and WYDOT (three copies each) in an organized, bound volume as well as input into the provided Synchro 7 models for AM Peak, Noon Peak, and PM Peak. Provide electronic count files that can be exported directly into Synchro, JamarPetraPro software or any software that requires turning movements as an input.

All traffic counts to be completed in April and May 2012 with final data delivered to the City and WYDOT no later than Friday, June 29, 2012. The Consultant shall have rigorous quality control procedures in place, apply quality assurance measures and verify accuracy of the traffic counts before data is submitted to the City

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“EXHIBIT B”

BASIC COMPENSATION SCHEDULE

<u>Quantity</u>	<u>Description</u>	<u>Unit Price</u>	<u>Total</u>
0	Single Person Counts	\$ 0.00	\$ 0.00
0	Two Person Counts	\$ 0.00	\$ 0.00
121	VCU Counts	\$ 350.00	\$ 42,350.00
0	2 VCU Counts	\$ 0.00	\$ 0.00
Total			\$ 42,350.00

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EXHIBIT "C"

PROJECT SCHEDULE

Date	Schedule Item
April 10, 2012	Notice-to-Proceed Issued by City
May 31, 2012	All data collected
June 29, 2012	Final data delivered to City and WYDOT